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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE’S RESPONSE TO NEWS
MEDIA’S MOTION FOR
ATTORNEYS EYES ONLY ACCESS
TO CLOSURE MOTIONS**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State has no objection to the News Media’s Motion for Attorneys[’] Eyes Only Access to Closure Motions. The media request only what is required by this Court’s prior order, its rules, and controlling caselaw.

This Court’s November 10, 2025 Order already requires “that all future motions to classify a record in this case must be served on representatives of the press who requested notice.” Dkt. 171 at 2.

This Court’s rules impose the same requirement. A person who files a motion to restrict public access to a record “*must* serve any representative of the press who has

requested notice in the case.” Utah Code Jud. Admin. R. 4-202.04(4) (emphasis added). When considering a closure motion, a court must conduct those proceedings “in accordance with the Utah Rules of Civil Procedure, [or] Utah Rules of Criminal Procedure.” *Id.* The State is not aware of any provision in these rules that would allow a party to litigate a closure motion ex parte, or with the participation of only the parties and not the media.

The Court’s rules also require it to make specific findings regarding its balancing of “the interests favoring opening and closing the record.” *Id.* R. 4-202.04(6)(B). The State does not see how the Court can properly balance these interests without allowing the media representatives a full opportunity to present the public’s interest regarding the motion.

Finally, as media counsel observe, under controlling caselaw “a closure order *must* be preceded by notice and hearing. Representative members of the media *must receive notice of the motion for closure* and ... *must* be afforded an opportunity to participate in the proceedings upon the motion to the maximum extent possible.” *Kearns-Trib. Corp., Publisher of Salt Lake Trib. v. Lewis*, 685 P.2d 515, 524 (Utah 1984) (emphasis added).

The Court should therefore grant the media’s motion.

Dated February 6, 2026.

Utah County Attorney’s Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on February 6, 2026, I filed the foregoing **STATE'S RESPONSE TO NEWS MEDIA'S MOTION FOR ATTORNEYS EYES ONLY ACCESS TO CLOSURE MOTIONS** through the court's electronic filing system, which served a copy on all counsel of record. I also emailed a copy to counsel for the news media as follows:

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